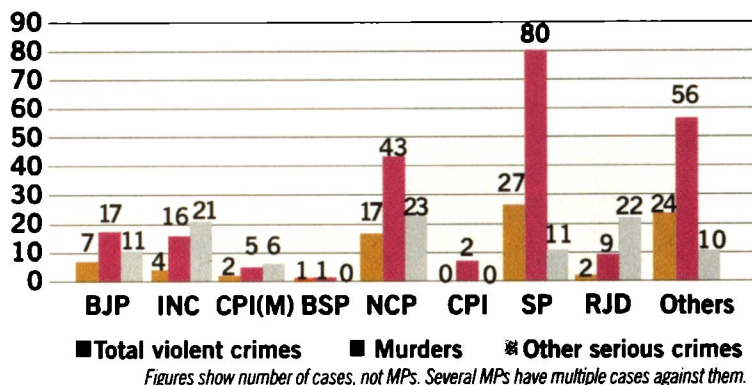
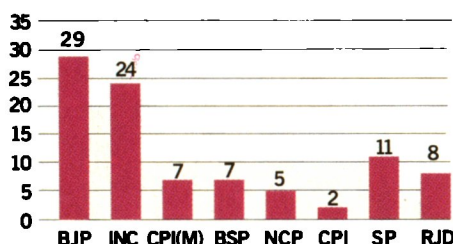


Hall of Shame While Samajwadi Party MPs lead the pack with 80 cases of violent crimes registered against them, BJP has 29 MPs with pending criminal cases

Parties with criminal cases



MPs with pending criminal cases



of all environmental, forest and common property resources. Hillsides are dug up for quarrying, illegal mining is carried out for minerals, river beds are emptied for sand, and forests cut down for timber. Public funds are siphoned off on all projects. Again there is a simple way out.

As in the US, all candidates must declare the approximate amount of funds they plan to spend in the elections well in advance, along with the source of such funds. Also, there must be a penalty for those who do not declare the source of such funds and for those donors too who give black money.

How bad is the situation today? According to the data based on the candidate information during the 2004 Lok Sabha elections, of the 120 elected MPs with criminal records, the BJP has 29, the Indian National Congress (INC) 24, SP 11, RJD eight, CPI(M) and BSP seven each, NCP five and CPI two. There are 333 serious cases against MPs, with several having multiple cases. The SP leads the pack with 80 cases of violent crimes like murder, attempt to murder, robbery, dacoity, kidnapping, theft and

extortion, rape and others like assault using dangerous weapons or causing grievous hurt. It is followed by BSP with 43 cases, BJP has 17, INC 16, RJD nine, CPI(M) five, CPI one and NCP two. For other crimes like cheating, fraud, forgery, giving false oaths to public officials, the BSP has 23 cases, RJD 22, INC 21, BJP 11, SP 11 and CPI(M) six.

In its May 2, 2002, and March 13, 2003 judgments, the Supreme Court in response to public interest litigations had said that all candidates must declare their financial and criminal records (if any), and their educational qualifications in a sworn affidavit to the returning officer. Since these judgments, Citizen Election Watches have sprung up in all major states. Over 1,200 NGOs around India have got involved in this work—collecting, summarising and disseminating this information on candidates to voters. As a result, various parties, including the BJP and the Congress, have made announcements about not putting up candidates with criminal records. But no party has kept its word.

However, there is some light at the end of the tunnel. As a result of the Bihar Election Watch, the chief minister announced that no one with a criminal record would become a minister, a promise he has kept so far. In Uttar Pradesh, the number of MLAs with a criminal record came down from 206 in the previous elections to 160 in the 2007 elections, while in Karnataka, the number came down from 217 in 2004 to 71 in 2008. This downward trend is a result of exposure by various citizen election watches in different states. Parties have now become a little more cautious about fielding such candidates.

There is a nationwide campaign to raise voter awareness, monitor election expenses and put pressure on political party leaders to put up clean and capable candidates. Recently, the media reported that Rahul Gandhi announced that the Congress would field only clean candidates. This is indeed a welcome announcement. However, if we debar people with criminal records from contesting and ensure that sources of funding for elections are made public well before elections, with penalties for non-disclosure on both the donor and the receiver, we can take a decisive step forward.

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MPs IN THE LOK SABHA FACE CRIMINAL CHARGES, THOUGH THE LAW SAYS THAT ANYONE SENTENCED TO TWO YEARS OR MORE IN JAIL IS DISQUALIFIED FROM CONTESTING ELECTIONS.

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